



DEPARTMENT OF EDUCATION

Colorado State Board of Education

ADMINISTRATION OF CLOSING THE ACHIEVEMENT GAP

1 CCR 301-69

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

227611-R-1.00 Statement of Basis and Purpose

The statutory basis for these rules adopted January 12, 2006 is found in 22-2-106(1)(a) and (c), State Board duties; 22-2-107(1)(c), State Board powers; 22-7-611(5) C.R.S. Closing the Achievement Gap Program

According to section 22-7-611, C.R.S., the State Board of Education shall determine the criteria by which eligible schools shall be selected to participate in the voluntary Closing the Achievement Gap Program and shall promulgate rules that set forth that criteria.

The State Board is promulgating the proposed amendments pursuant to SB09-256, 22-7-613 C.R.S., which creates a cash fund to support closing the achievement gap.

227611-R-1.01 Statement of Basis and Purpose

The statutory basis for these rules is found in 22-2-106(1)(a) and (c), State Board duties; 22-2-107(1)(c), State Board powers; 22-7-611, Closing the Achievement Gap Program, C.R.S. The amendments to the rules are made in response to the Office of Legislative Legal Services' observation that the State Board of Education should provide more specificity with regard to the criteria by which eligible schools shall be selected to participate in the voluntary Closing the Achievement Gap Program.

27611-R-2.00 Definitions

2.01 "Department" means the Department of Education created pursuant to section 24-1-115(A), C.R.S.

2.02 "State Board" means the State Board of Education created pursuant to Section 1, Article IX of the State Constitution.

2.03 "Eligible District" means a school district that has been identified by rule of the State Board as having a significant achievement gap.

2.04 "Eligible School" means a public school that has been identified by rule of the State Board as having a significant achievement gap.

2.05 "Poverty" means those students who are eligible to receive free or reduced-price lunch.

227611-R-3.00 Selection Criteria

The following criteria shall be used to identify districts and schools that demonstrate a significant achievement gap and thus are eligible to submit an application for funds:

- 3.01 Of all the districts and schools in the state with gaps in achievement status on the Colorado Student Achievement Program (CSAP) between minority and non-minority groups and poverty and non-poverty groups, the 10% of districts and schools with the highest gap, based on CSAP data from the previous 2 consecutive years; and
- 3.02 Of all the districts and schools in the state with gaps in growth percentiles for performance on the CSAP between minority and non-minority groups and poverty and non-poverty groups, the 10% of districts and schools with the highest growth gaps, based on CSAP growth model data from the previous 2 consecutive years.
- 3.03 The following criteria shall be utilized in determining which Eligible Districts and Eligible Schools shall be selected to participate in the program:
 - 3.01(a) Consideration of quantitative achievement data, CSAP and formative data, which are disaggregated by race, socio-economic status (SES), and gender. Gap analyses, by subgroup, with an indication of those areas of greatest strength and need;
 - 3.01(b) A description of the scope and range of achievement disparities, which include a clear presentation of the proposed intervention.
 - 3.01(c) An identification of the root cause for performance disparity, broken out by subgroup, over which the school has control;
 - 3.01(d) A rubric showing that the proposed plan is aligned with the district strategic plan, state expectations for academic content, and student achievement results, including annual goals and interim targets focused on closing the achievement gap;
 - 3.01(e) Identification of specific assessments, using disaggregated assessment data results used in decision-making related to teacher training, and student achievement progress monitoring by subgroup;
 - 3.01(f) Inclusion of culturally responsive practices integrated throughout the plan;
 - 3.01(g) The time sequence of events must include major implementation activities with expected completion dates.
 - 3.01(h) Professional development shall be considered.
 - 3.01(i) A plan detailing the expenditure of grant funds, including a budget narrative linked to project goals and activities;
 - 3.01(j) Demonstration that the proposed project budget is reasonable and sufficient in relation to objectives, design, and scope of project activities; and
 - 3.01(k) Identification and description of formative assessment costs which are paid for by the district, the grant, or any other sources shall be included in the narrative and in the budget allocations.

227611-R-4.00 Timeline

- 4.01 The Department shall provide an outline of different strategies that the Eligible District or Eligible School may implement to improve academic achievement on the Department website, www.cde.state.co.us, by April 1 of the school year preceding the school year in which the Eligible District or Eligible School intends to participate in the program, with the exception of academic year 2009-10, when the outline of strategies will be posted on or before November 15, 2009.

- 4.02 The Eligible District or Eligible School shall provide to its district school board a list of strategies selected from the outline provided by the department that the Eligible District or Eligible School intends to implement to improve academic achievement by May 1 of the school year preceding the school year in which the Eligible District or Eligible School intends to participate in the program.
- 4.03 The district school board shall provide to the Department a list of strategies that the district school board and the Eligible District or Eligible School have chosen to implement to improve academic achievement by June 1 of the school year preceding the school year in which the Eligible District or Eligible School intends to participate in the program.

Editor's Notes

History

Entire rule eff. 03/02/2006.

Entire rule emer. rule eff. 11/12/2009.

Entire rule eff. 01/30/2010.

Entire rule eff. 03/02/2011.